

SCOTUS porn ruling opens door to sweeping internet age verification

The United States Supreme Court ruled Friday to uphold a Texas law requiring websites with “sexual material harmful to minors” to verify the ages of all visitors. The Free Speech Coalition (FSC), a trade association for the adult industry, had brought the lawsuit against Texas attorney general Ken Paxton challenging the state’s age verification law.

“The power to require age verification is within a State’s authority to prevent children from accessing sexually explicit content,” Justice Clarence Thomas [wrote](#) in the court opinion. The court sided 6-3 in Paxton’s favor, with Justices Elena Kagan, Sonia Sotomayor, and Ketanji Brown Jackson dissenting.

Age verification in this context does not mean mindlessly clicking a box to declare that you are an adult — it means uploading government ID documents or using third-party verification platforms to prove your age.

This decision has far-reaching ramifications for internet privacy. Eighteen states have [already enacted laws](#) requiring age verification to access such websites, while six additional states have passed legislation that has not yet taken effect. Under the Texas law that the FSC challenged, a pornographic website is defined as having at least one-third of its content deemed “harmful to minors.”

Internet privacy advocates have long criticized these [age checks](#) for their potential to compromise users’ digital security, even when verification companies vow not to retain identifying information. In some cases, these age checks are conducted via [government tools](#), and it’s [not abnormal](#) for hackers to [breach](#) government databases.

At a time when LGBTQ rights are [under attack](#) in the U.S., activists have [protested](#) that laws like this could be used to classify non-pornographic information about the LGBTQ community, as well as basic sex education, to be “sexual material harmful to minors.” These concerns appear well-founded, given that President Trump’s administration has [removed references](#) to civil rights movements and LGBTQ history from some government websites.

The original Texas age verification law, HB 1181, was passed around the same time the state imposed other legal restrictions on the LGBTQ community, including [limits on public drag shows](#) and bans on [gender-affirming care](#) for minors. The drag show law was later deemed unconstitutional for violating the First Amendment.

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“This ruling allows states to enact onerous age-verification rules that will block adults from accessing lawful speech, curtail their ability to be anonymous, and jeopardize their data security and privacy,”

said Aaron Mackey, Free Speech and Transparency Litigation Director at the Electronic Frontier Foundation, in a statement.

“These are real and immense burdens on adults, and the Court was wrong to ignore them in upholding Texas’ law.”

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